

HOUSE No. 2594

The Commonwealth of Massachusetts

PRESENTED BY:

David F. DeCoste

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to defining "curios and relics".

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>David F. DeCoste</i>	<i>5th Plymouth</i>	<i>1/16/2025</i>
<i>Mackenzie Slocumb</i>		<i>1/16/2025</i>

HOUSE No. 2594

By Representative DeCoste of Norwell, a petition (accompanied by bill, House, No. 2594) of David F. DeCoste and Mackenzie Slocumb relative to firearms classified as "curios and relics". Public Safety and Homeland Security.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to defining "curios and relics".

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Notwithstanding any general or special law to the contrary, all firearms that
2 meet the federal definition of "curios and relics" as defined in 27 C.F.R. § 478.11 may be
3 obtained and kept by any resident of the commonwealth who holds a valid federal firearms
4 license (FFL) issued by the bureau of alcohol, tobacco, firearms, and explosives (ATF). These
5 firearms may be acquired through interstate commerce, private sales, estate sales, or retail sales
6 within the commonwealth, in accordance with the regulations set forth in 27 C.F.R. § 478.11.

7 SECTION 2. Notwithstanding any general or special law to the contrary, magazines of
8 any capacity that were standard issue for a firearm defined as a curio and relic under 27 C.F.R. §
9 478.11 may be possessed by any individual who holds a valid license to carry firearms (LTC)
10 under chapter 140, provided that the individual is a licensed collector in accordance with the
11 provisions of 27 C.F.R. § 478.11. This exemption applies to magazines that exceed the general
12 capacity limit of 10 rounds, so long as such magazines were originally designed for use with the

specific curio and relic firearm in question and are consistent with the firearm's original design and intended use.

SECTION 3. Section 131 of Chapter 140, as appearing in the 2022 Official Edition, is hereby amended by inserting after subsection (r) the following subsection:-

(s) The provisions of this section shall apply to all licensed firearm collectors who hold a valid license to carry firearms (LTC) and possess firearms classified as "curios and relics" under federal law. Such collectors may possess firearms and magazines that are otherwise restricted by state law, so long as the firearms meet the criteria defined under 27 C.F.R. § 478.11, and the magazines are the original design issued for those firearms. This section shall not be construed to exempt the possession of any other firearm or magazine not defined as a curio and relic under federal law.